



CHAPTER xciv.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Barnstaple Water Chelsham and Woldingham Water East Kent District Water and South Kent Water. [3rd August 1910.] A.D. 1910.

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas the limits of supply as defined by the Chelsham and Woldingham Water Order 1910 hereby confirmed include a portion of the area within which the Limpsfield and Oxted Water Company were by the Limpsfield and Oxted Water Act 1888 authorised to supply water but the said company have not in fact supplied water within the portion aforesaid and it has been agreed between the said company and the Undertakers for the purposes of the said Order that the said Undertakers shall be authorised by the said Order to supply water therein and that so much of the said Act as authorises the said company to supply water therein shall be repealed:

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

A.D. 1910. Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

Short title. **1.** This Act may be cited as the Water Orders Confirmation
Act 1910.

Confirmation
of Orders in
schedule. **2.** The Orders as amended and set out in the schedule to
this Act shall be and the same are hereby confirmed and all
the provisions thereof in manner and form as they are set out
in the said schedule shall from and after the passing of this
Act have full validity and effect.

Amendment
of 51 & 52
Vict. c. cvi. **3.** So much of the Limpsfield and Oxted Water Act 1888
as authorises the Limpsfield and Oxted Water Company to supply
water within so much of the parishes of Oxted Limpsfield and
Titsey as is included within the limits of supply as defined
by the Chelsham and Woldingham Water Order 1910 hereby
confirmed is hereby repealed and as from the passing of this
Act all the powers duties and obligations of the Limpsfield and
Oxted Water Company with reference to the supply of water
within those portions of the parishes of Oxted Limpsfield and
Titsey aforesaid shall absolutely cease and determine and the
said Order shall have as full validity and effect as if those
portions of the said parishes had never been included within the
limits within which the Limpsfield and Oxted Water Company
were authorised to supply water.

SCHEDULE.

A.D. 1910.

LIST OF ORDERS.

BARNSTAPLE WATER.—Order empowering the Barnstaple Water Company to extend their limits of supply and for other purposes.

CHELSHAM AND WOLDINGHAM WATER.—Order authorising the maintenance of waterworks and the supply of water in the parishes of Chelsham and Woldingham and parts of the parishes of Oxted Limpsfield and Titsey in the rural district of Godstone in the county of Surrey.

EAST KENT DISTRICT WATER.—Order empowering the East Kent District Water Company to extend their limits of supply to raise additional capital and for other purposes.

SOUTH KENT WATER.—Order empowering the South Kent Water Company to raise additional capital and for other purposes.

BARNSTAPLE WATER.

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*Barnstaple.**Order empowering the Barnstaple Water Company to extend
their limits of supply and for other purposes.*Short and
collective
titles.

1. This Order may be cited as the Barnstaple Water Order 1910 the Barnstaple Waterworks Act 1858 (in this Order referred to as "the Act of 1858") and the Barnstaple Waterworks Act 1888 (in this Order referred to as "the Act of 1888") and this Order may be cited collectively as the Barnstaple Waterworks Acts and Order 1858 to 1910.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorpora-
tion of Acts.

3. The Waterworks Clauses Acts 1847 and 1863 are except where expressly varied by this Order incorporated with and form part of this Order Provided that section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted therefrom.

Interpreta-
tion.

4. The several words terms and expressions to which by any Act incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction.

"The limits of supply" means the limits of the Act of 1858 as extended by the Act of 1888 and by this Order;

"The extended limits of supply" means the parish of Instow in the county of Devon;

"The council" means the Barnstaple Rural District Council.

Undertakers.

Undertakers.

5. The Barnstaple Water Company incorporated by the Act of 1858 shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

*Extension of Limits.*Extension of
limits of
supply.

6. The Undertakers shall have and may exercise subject to the provisions of this Order within the extended limits of supply for or in relation to the supply of water all the like powers privileges and authorities and be subject to all the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits

of the Act of 1858 as extended by the Act of 1888 and from and after the commencement of this Order the limits of supply shall be deemed to include the limits of the Act of 1858 as extended by the Act of 1888 and the extended limits of supply. Provided that the Undertakers may demand and take in respect of the supply of water within the extended limits of supply an additional rate or charge not exceeding one-fifth part of the rates or charges authorised by the Act of 1858.

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Barnstaple.

7. If at any time after the expiration of five years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order in any part of the district of any local authority included within the extended limits of supply the local authority of such district may provide a supply in the whole or any part of their district within those limits in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purposes of supplying water in any part of such district to which the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water as if in either case there were no Undertakers authorised by this Order to supply water therein.

Where
Undertakers
not furnish-
ing sufficient
supply local
authority or
company
may supply.

If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

8. Notwithstanding anything in this Order the Act of 1858 the Act of 1888 or the Acts incorporated therewith contained the Undertakers shall not be required to supply water within any part of the district of the council which is within the limits of supply unless the council shall enter into an agreement with the Undertakers binding the council to make good to the Undertakers any difference between the rates payable annually to the Undertakers in respect of such supply and one-tenth part of the expense to be incurred by the Undertakers in affording such supply including the construction and laying down of the works mains and pipes required for that purpose and the council are hereby authorised subject to the approval of the Local Government Board to enter into such agreements from time to time accordingly and to charge any expenses incurred by them thereunder as special expenses within the meaning of section 229 of the Public Health Act 1875 upon any of the contributory places or any part thereof which are situate in that part of the district of the council which is within the limits of supply. If any difference shall arise between the Undertakers and the council as to the amount of the rates payable to or of the expense incurred or to be incurred by the Undertakers under this section that difference shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either party.

As to supply
in Barnstaple
rural dis-
trict.

A.D. 1910.

*Barnstaple.*Power to
make sub-
sidiary works.

9. The Undertakers may on any lands for the time being belonging to them make and maintain all such mains pipes culverts service reservoirs tanks apparatus machinery and appliances as may be necessary or convenient for the purposes of this Order.

Limiting
powers to
abstract
water.

10. The Undertakers shall not sink any well upon or construct any works for taking or intercepting water from any land acquired by them unless the works and the lands upon which the same are to be constructed are specified in this Order or some other Provisional Order or Act of Parliament.

Contracts for
supply of
water in
bulk.

11. The Undertakers may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of supply to any such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply.

Rates pay-
able by
owners of
small houses.

12. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Notice of dis-
continuance.

13. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers.

Supply to
houses partly
used for
trade &c.

14. The Undertakers shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Power to
supply fit-
tings.

15.—(1) The Undertakers may if required by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets and other fittings as are required or permitted by their regulations and may provide all

materials and work necessary or proper in that behalf and the reasonable charges of the Undertakers in providing such materials and executing such work shall be paid by the person requiring the same.

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(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

16. The Undertakers may but only with the consent of the owner of the soil of any street or road on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for the furnishing of such supply.

Power to lay
pipes in
streets not
dedicated to
public use.

17. For the protection of the London and South Western Railway Company (in this section referred to as "the South Western Company") the following provisions shall unless otherwise agreed between the Undertakers and the South Western Company apply and have effect viz. :—

For pro-
tection of
London and
South West-
ern Railway
Company.

(A) In laying down repairing or removing any water mains or pipes or executing any other works within the extended limits of supply in the exercise of the powers contained in this Order relative to the supply of water upon across over under or in any way affecting the railway of the South Western Company or any bridge over or under such railway or any approaches to any such bridge maintained by or within the South Western Company's boundary (herein-after called "the railway works") the same shall be done under the superintendence if the same be given and to the reasonable satisfaction of the engineer of the South Western Company and according to such plans sections and specifications and (except in case of urgent necessity) at such times as shall be previously submitted to and shall be reasonably approved in writing by him or in the event of disapproval then in such manner as shall be determined by arbitration in manner herein-after provided and all such works shall be executed by and at the expense in all things of the Undertakers and so as not to cause any injury to the railway works nor alter the existing level of the roadway or prevent any improve-

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ment or widening of such railway or bridge or the introduction of side openings to such bridge. Provided that if the said engineer does not in writing express his approval or disapproval of the said plans sections and specifications within one month after the same have been submitted to him he shall be deemed to have approved thereof. Provided also that where there is not sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the South Western Company may require such mains or pipes to be carried outside the structure of any such bridge and shall afford all reasonable facilities for the purpose subject to the conditions herein-before contained so far as the same may be applicable thereto. The Undertakers shall bear and on demand pay to the South Western Company all reasonable costs of the superintendence by them of the construction of the works and repairs thereof and all reasonable costs of watching lighting and protection of the railway works with reference to and during such construction and repairs:

- (b) The Undertakers shall (except in the case of urgent necessity) give one month's notice in writing to the South Western Company before commencing any works affecting the railway works or within ten feet of the South Western Company's boundary:
- (c) If any injury or damage to the railway works or property of the South Western Company or any interruption to the South Western Company's traffic shall be in any way occasioned by the construction maintenance or user of the works of the Undertakers or their contractors agents or workmen the Undertakers shall forthwith make full compensation to the South Western Company in respect thereof and the amount of such compensation shall failing agreement be determined by arbitration in manner herein-after provided:
- (d) All water mains or pipes and other works of the Undertakers constructed laid down or executed by the Undertakers or their contractors under the powers contained in this Order upon across over under or in any way affecting the railway works shall be at all times maintained in good repair by the Undertakers and in default of their being so maintained the South Western Company may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Undertakers require the Undertakers to forthwith put the same into good repair and if the Undertakers for fourteen days after the receipt

of such notice refuse or neglect to proceed with the repair of the same the South Western Company may without any further notice to the Undertakers repair the same and all costs and expenses reasonably incurred by them in or about such repair shall be repaid to them by the Undertakers Provided that in case of accidents happening or immediate danger being apprehended to the railway works by reason of any such water main pipe or other work as aforesaid being in want of repair the South Western Company may without giving such notice as aforesaid execute such repairs as may be immediately necessary and any reasonable costs and expenses to which the South Western Company may be put by reason of any such repairs shall be repaid to them as herein-before provided :

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- (E) If the South Western Company at any time hereafter require to construct any additional or other works upon their lands or railway or to widen or alter their railway or to widen lengthen strengthen reconstruct alter repair lift or support any bridge over or under such railway or the approaches to such bridge at any place where any works of the Undertakers may have been constructed or laid the Undertakers shall afford to the South Western Company all reasonable and proper facilities for the purpose :
- (F) Any difference which may arise between the South Western Company and the Undertakers touching any of the matters referred to in this section shall be decided by a single arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

18. If any difference arise between the Undertakers and any road authority or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works or to the facilities to be afforded for the same such difference shall unless otherwise provided by this Order be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Differences
with road
authority or
railway or
other com-
pany.

19. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

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CHELSHAM AND WOLDINGHAM WATER.

Chelsham and
Woldingham.

Order authorising the maintenance of waterworks and the supply of water in the parishes of Chelsham and Woldingham and parts of the parishes of Oxted Limpsfield and Titsey in the rural district of Godstone in the county of Surrey.

Short title.

1. This Order may be cited as the Chelsham and Woldingham Water Order 1910.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation
of Acts.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 (except the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" in section 44 of the Waterworks Clauses Act 1847) are except where the same are expressly varied by this Order hereby incorporated with and form part of this Order and the said provisions of the last-mentioned Acts shall apply as well to the pipes and works of the Undertakers laid down or constructed before the passing of the Act confirming this Order as to any pipes or works which may be laid down or constructed under the authority of this Order.

Interpreta-
tion.

4. The several words and expressions to which by the Acts in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction.

Limits of
Order.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the parishes of Chelsham and Woldingham and the portions of the parishes of Oxted Limpsfield and Titsey which lie to the north and west of an imaginary line drawn from the point where the boundary of the parish of Woldingham intersects the boundary of the parish of Oxted at a point $16\frac{1}{4}$ chains or thereabouts measured in a south-easterly direction from the south-western corner of the Undertakers' reservoir in the parish of Woldingham situate on the enclosure No. 116 on the $25\frac{1}{100}$ ordnance map Surrey sheet XXVII—8 (2nd edition 1896) thence proceeding in an easterly direction at a distance of 500 feet from and parallel with the southern boundary of the road leading from Woldingham to Westerham to the point

where the eastern boundary of White Lane intersects the said road thence across Clarks Lane thence along the eastern boundary of the road leading from White Lane to Tatsfield to the point where the boundary of the parish of Tatsfield intersects the said road thence along the boundary of the parishes of Tatsfield and Titsey to the boundary of the parish of Chelsham:

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Woldingham.*

Provided always that if within three years from the commencement of this Order any local authority company or person shall be authorised by Act of Parliament or Provisional Order confirmed by Act of Parliament to supply water throughout any part of the portions of the parish of Chelsham shown on the map signed in duplicate by the Honourable Thomas Henry William Pelham one copy whereof has been deposited at the offices of the Board of Trade and the other at the offices of the Undertakers such part or parts of the said parish shown on the said map as may be included within the limits of supply of such local authority company or person as aforesaid shall as from the passing of the Act authorising such supply cease to be within the limits of supply of the Undertakers.

6. If at any time after the expiration of five years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order in any part of the district of any local authority included within the limits of supply the local authority of such district may provide a supply in the whole or any part of their district within those limits in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purposes of supplying water in any part of such district to which the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water as if in either case there were no Undertakers authorised by this Order to supply water therein.

Where
Undertakers
not furnish-
ing sufficient
supply local
authority or
company
may supply.

If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

Undertakers.

7. The Chelsham and Woldingham Waterworks Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Capital.

8. The share capital of the Undertakers shall not exceed twenty thousand pounds consisting of the original share capital already raised by the Undertakers of seven thousand and sixty pounds (in this Order

Capital.

A.D. 1910. referred to as "the original capital") and of additional capital (in this Order called "the additional capital") to be issued subject to the provisions of this Order not exceeding twelve thousand nine hundred and forty pounds including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order unless the Undertakers are hereafter authorised to raise for the purposes of the undertaking further additional capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional
capital to
be sold by
auction or
tender.

9.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of every local authority within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of the ordinary shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors of the Undertakers may think fit or to one or more of these classes of persons

only Provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

10. All money raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend. Provided that all such sums shall be deemed to be part of the paid-up capital of the Undertakers for the purpose of determining the amount which the Undertakers may borrow under this Order and part of the nominal capital for the purpose of determining the amount which the Undertakers may accumulate for the formation of a reserve fund.

Application
of money.

11. Except as by this Order expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividends than seven pounds per centum upon the original capital and the amount for the time being actually paid up of the additional capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said yearly rate.

Limits of
dividend on
capital.

12. In case in any year or in any half year (if the Undertakers declare a dividend half yearly) the net revenue of the Undertakers applicable to dividend is insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the original capital and additional capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Dividends on
different
classes of
ordinary
shares or
stock to be
paid propor-
tionately.

13. So long as the share capital of the Undertakers actually raised by the issue of shares or stock including premiums does not exceed fourteen thousand two hundred pounds the amount of money borrowed

Limit of
borrowing
powers.

A.D. 1910. by the Undertakers and secured by mortgage of the undertaking shall not be increased beyond the sum owing by the Undertakers upon the security of mortgages of the undertaking at the commencement of this Order. In the event of the share capital aforesaid being increased to an amount exceeding fourteen thousand two hundred pounds the amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Lands.

Power to
acquire lands.

14. The Undertakers may by agreement purchase take on lease acquire and use any lands and any easements rights or privileges (not being an easement right or privilege to take water in which persons other than the grantors have an interest) in over or affecting any such lands which they may require for the purposes of their undertaking. Provided that they shall not create or permit a nuisance on any lands so held by them and that they shall not at any time hold for such purposes more than five acres of land in addition to the lands held by them at the commencement of this Order.

Persons
under dis-
ability may
grant ease-
ments &c.
to Under-
takers.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
erect &c.
cottages for
officers and
servants.

16. The Undertakers may on any land for the time being belonging to or leased by them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

Maintenance of Waterworks.

Power to
maintain
existing
works and
to supply
water.

17. The Undertakers may on the lands upon which the same are situate if and so long as they are possessed of the said lands or so long as they may be entitled so to do under any agreement maintain and continue their existing waterworks herein-after described and subject as aforesaid may alter enlarge renew and improve the same

with all mains pipes machinery and other works connected therewith and necessary for the supply of water and they may subject to the provisions of this Order supply and sell water for domestic and other purposes within the limits of supply.

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*Chelsham and
Woldingham.*

The existing waterworks herein-before referred to are—

- (A) The works machinery and apparatus at present used for utilising and distributing a supply of water from the existing well and pumping station in the parish of Chelsham situate on the enclosure numbered 291 on the $\frac{1}{2500}$ ordnance map Surrey sheet XX—16 (2nd edition 1896):
- (B) A tank in the parish of Woldingham at Nether Court on the enclosure numbered 64 on the $\frac{1}{2500}$ ordnance map Surrey sheet XXVII—4 (2nd edition 1896):
- (C) A covered reservoir also in the parish of Woldingham on the enclosure numbered 116 on the $\frac{1}{2500}$ ordnance map Surrey sheet XXVII—8 (2nd edition 1896).

18. If any difference arise between the Undertakers and any road authority railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order for the purposes of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their conduits mains pipes or works in over or upon any road under the jurisdiction of such road authority or in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade.

As to pipes
crossing
works of a
railway or
other com-
pany.

19. The Undertakers shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them after the commencement of this Order unless the works and the lands upon which the same are to be constructed are specified in this Order or some other Provisional Order or Act of Parliament.

Limiting
powers of
Undertakers
to abstract
water.

Supply.

20. The water supplied by the Undertakers shall be constantly laid on under pressure but need not at any time be delivered at a greater height than can be reached by gravitation from the service reservoir or tank from which the supply is taken and it shall be in the discretion of the Undertakers in every case to determine the particular service reservoir or tank from which the supply is to be taken.

Limits of
pressure.

21. The Undertakers shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Order to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of

Rates for
domestic
supply.

A.D. 1910. water for such domestic purposes at rates not exceeding the rates per annum herein-after specified (that is to say):—
Chelsham and Woldingham.

Where the gross estimated rental of the premises so supplied with water does not exceed five pounds the sum of eight shillings and eightpence;

Where such gross estimated rental exceeds five pounds but does not exceed thirty pounds a rate per annum not exceeding ten pounds per centum of such gross estimated rental;

Where such gross estimated rental exceeds thirty pounds but does not exceed fifty pounds a rate per annum not exceeding nine pounds ten shillings per centum of such gross estimated rental;

Where such gross estimated rental exceeds fifty pounds but does not exceed seventy pounds a rate per annum not exceeding nine pounds per centum of such gross estimated rental;

Where such gross estimated rental exceeds seventy pounds but does not exceed one hundred pounds a rate per annum not exceeding eight pounds ten shillings per centum of such gross estimated rental;

Where such gross estimated rental exceeds one hundred pounds a rate per annum not exceeding eight pounds per centum of such gross estimated rental;

and so on in proportion for any shorter period than a year:

Provided that the Undertakers shall not be compellable to furnish any such supply as aforesaid for any less sum than eight shillings and eightpence in any one year nor for a less period than twelve months and that the Undertakers shall in no case be entitled to charge at a higher rate in respect of any house or part of a house included in any division of the above scale than that at which they would be entitled to charge if such house or part of a house were of just sufficient rateable value to bring it within the next higher division of the said scale:

Provided also that at any time after the expiration of three years from the commencement of this Order the Board of Trade may if they think fit upon the application of any local authority having jurisdiction within the limits of supply or of twenty or more inhabitant householders within the limits of supply or of the Undertakers by order in writing signed by a secretary or assistant secretary of the said Board after hearing the parties alter the said rates by substituting any other rates for the said rates and as from the date specified in such order the rates at which the Undertakers may charge for water supplied by them for domestic purposes shall be in accordance with such order:

A copy of any such order made by the Board of Trade shall be published in the London Gazette and a copy of the said Gazette

containing such order shall be *primâ facie* evidence of the due making and validity of the same and of the contents thereof: A.D. 1910.

The gross estimated rental of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter in which the rate accrues or if there is no such rate in force by the last rate made for the relief of the poor:

*Chelsham and
Woldingham.*

Provided that where the water rate is chargeable on the gross estimated rental of a part only of any hereditament entered in the valuation list or poor rate (such part not being separately assessed to the rate for the relief of the poor) such gross estimated rental shall be a fairly apportioned part of the gross estimated rental of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be determined by a court of summary jurisdiction.

22. In addition to the foregoing charges the Undertakers may charge in respect of every water-closet beyond the first (for which no additional charge shall be made) on any premises within the limits of supply to which a supply of water is furnished by the Undertakers a sum not exceeding five shillings per annum and for every fixed bath an additional sum not exceeding fifteen shillings per annum. Provided that for baths containing as usually filled for use a greater quantity of water than fifty gallons the Undertakers may charge an additional sum in excess of the said sum of fifteen shillings increased in proportion to the size of such bath but the Undertakers shall not be compelled to supply water for any bath so constructed as to contain when filled for use more than fifty gallons of water and such additional sums are to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Rates for
water-closets
and baths.

23. The Undertakers shall not be bound to supply with water otherwise than by measure any workhouse hospital or other large public institution.

Supply by
meter in cer-
tain cases.

Where the Undertakers refuse to supply with water any workhouse hospital or other large public institution as aforesaid otherwise than by measure they shall on the application of the occupier or other person having the charge thereof supply the same with sufficient water for domestic or any other purposes at a rate not exceeding one shilling and ninepence for every thousand gallons and the moneys payable to the Undertakers under this section shall be recoverable in the same manner as rates due to the Undertakers for water. Provided that the Undertakers shall not be compelled to afford to any premises a supply of water by measure for a less sum in any one quarter of a year than the amount of the rate which would have been payable in respect of such premises for a supply of water otherwise than by measure.

24. For preventing waste misuse undue consumption or contamination of the water of the Undertakers the following provisions shall be in force and have effect but only within the district in which the Under-

Regulations
for prevent-
ing waste &c.
of water.

A.D. 1910. takers are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

*Chelsham and
Woldingham.*

The said provisions are as follows:—

- (1) The Undertakers may from time to time make regulations for the purpose of preventing the waste undue consumption or misuse or contamination of water and may by such regulations prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of the pipes meters cocks ferrules valves soil-pans water-closets baths tanks cisterns and other apparatus fittings means contrivances receptacles or appliances whatsoever to be used and forbid any arrangements and the use of the several things before mentioned or any or either of them which may allow or tend to waste or undue consumption misuse erroneous measurement or contamination Such regulations shall not apply to fittings in use at the commencement of this Order so long as they are kept in proper repair and are efficient:
- (2) No such regulation shall be of any force or effect unless and until the same shall have been submitted to and confirmed by the Local Government Board who are hereby empowered to confirm the same:
- (3) No such regulations shall be confirmed until after the expiration of one month after notice in writing to submit the same for confirmation together with a copy of the proposed regulations shall have been given by or on behalf of the Undertakers to the local authorities within the limits of supply who may within the said period of one month make such representations to the Local Government Board as they see fit:
- (4) Any such regulations in force for the time being shall be published by a copy thereof being kept at the office of the Undertakers which copy shall be open to the inspection of all persons at all reasonable times without payment and the Undertakers shall also furnish a printed copy of all such regulations to every person applying for the same on payment of a sum not exceeding sixpence for each copy:
- (5) A printed copy of any such regulations purporting to be made and to have been confirmed by the Local Government Board as aforesaid shall be evidence (until the contrary is proved) in all legal proceedings of the due making confirmation publication or existence of such regulations without further or other proof:
- (6) In case of failure of any person to observe such regulations as are for the time being in force the Undertakers may if they think fit after twenty-four hours' notice in writing

enter and by and under the direction of their duly qualified officer repair replace or alter any pipes cocks cisterns or other apparatus whatsoever belonging to or used by any person supplied by them and the expense of every such repair replacement or alteration shall be repaid to the Undertakers by the person on whose credit the water is supplied and shall be recoverable by the Undertakers as the water rates in respect of the premises are recoverable.

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Woldingham.

25. The Undertakers may by agreement supply any local authority company or person without the limits of supply with water in bulk for such remuneration and upon such terms and conditions as may be agreed upon between the Undertakers and such local authority company or person but notwithstanding any such agreement no such local authority company or person shall be entitled to such a supply whenever and as long as the Undertakers are of opinion that the same would interfere with the proper supply of water within the limits of supply for domestic purposes under this Order and every such agreement shall be by virtue of this Order determinable by the Undertakers on not less than one month's notice in writing. Provided always that nothing herein contained shall authorise the Undertakers to lay down or place any pipe or conduit or to break up any road or street or to execute any work in any district beyond the limits of supply or to supply or to continue to supply water within the limits of supply of any local authority company or person now or hereafter empowered by Act of Parliament or by Provisional Order confirmed by Act of Parliament to supply water without the consent in writing of such local authority company or person first had and obtained.

Water sup-
plied by
agreement.

26.—(1) The Undertakers may supply water for other than domestic purposes on such terms and conditions as the Undertakers think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Supply by
measure.

(2) The price to be charged for a supply of water by measure shall not exceed one shilling and ninepence per thousand gallons.

27. It shall not be lawful for the Undertakers to supply water derived from any source in the county of Surrey in bulk or otherwise beyond or for use beyond the limits of the county of Surrey.

For protec-
tion of Surrey
County
Council.

28. The Undertakers shall at all times at their own expense keep all meters or other instruments for measuring water let by them for hire to any person in proper order for correctly registering the supply of water and in default of their so doing such person shall not be liable to pay rent for the same during such time as such default continues. The Undertakers shall for the purposes aforesaid have

Undertakers
to keep
meters &c. in
repair.

A.D. 1910.

*Chelsham and
Woldingham.*Register of
meters &c. to
be evidence.

access to and be at liberty to remove test inspect and replace any such meter or other instrument at all reasonable times.

29. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Undertakers Provided always that if the Undertakers and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

When several
houses sup-
plied by one
pipe each to
pay.

30. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe the several owners or occupiers of such houses or parts of houses shall be liable to the payment of the same rates for the supply of water as they would have been liable to if each of such several houses or parts of such houses had been separately supplied with water from the works of the Undertakers by a distinct pipe:

Provided that the Undertakers shall not be compelled to supply water to the occupier of any part of a dwelling-house unless the water rate is paid for the whole of such dwelling-house.

Supply of
water to
tenements in
a row.

31. Where there are several tenements in a row no tenant or occupier of any one of the tenements nor any person on his behalf shall take or use the water laid on by the Undertakers to any other of such tenements unless the tenant or occupier so taking or using the water be in respect of the tenement so occupied by him rated under this Order for a supply of water.

Undertakers
not bound to
supply
several
houses by
one pipe.
Notice of dis-
continuance.

32. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

33. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing and left at the principal office for the time being of the Undertakers.

*Penalties.*Injuring
meters &c.

34. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or fittings belonging to the Undertakers or who fraudulently alters the index to any meter or prevents any meter from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Undertakers shall (without prejudice to any other right or remedy for the protection of the Undertakers or the punishment of

the offender) for every such offence forfeit and pay to the Undertakers a sum not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained and in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter or fittings belonging to the Undertakers or has fraudulently altered the index to any meter or prevented any meter from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Undertakers the Undertakers may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Undertakers by the offender and may be recovered by them as water rates are recoverable and the existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Undertakers when such pipe meter or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or user as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter or fittings.

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Chelsham and
Woldingham.

35. Any tenant or occupier of one or part of one of several houses or tenements supplied by a common pipe who takes or uses the water laid on by the Undertakers to any other such house or tenement or allows the same to be taken or used contrary to the provisions of this Order shall for every such offence be liable to a penalty not exceeding five pounds.

Misuser
where supply
to several
houses is by a
pipe common
to all.

Miscellaneous.

36. In case any person supplied with water by the Undertakers leaves the premises where such water has been supplied to him without paying to them the water rate or meter rent due from him the Undertakers shall not be entitled to require from the next tenant of such premises the payment of the arrears left unpaid by the former tenant unless such incoming tenant has undertaken with the former tenant to pay or exonerate him from the payment of such arrears.

Incoming
tenant not
liable to pay
arrears.

37. Any summons or warrant issued for any of the purposes of this Order may contain in the body thereof or in the schedule thereto several sums.

Several sums
in one sum-
mons.

38. Any justice who issues a warrant of distress in pursuance of the provisions of this Order may order that the costs of the proceedings for the recovery of the money to be levied shall be paid by the person liable to pay such money and such costs shall be ascertained by such

Warrant of
distress to
include costs.

A.D. 1910.

Chelsham and
Woldingham.

justice and shall be included in the warrant of distress for the recovery of such money.

Liability to
water rate
not to dis-
qualify jus-
tices from
acting.

Costs of
Order.

39. No justice or judge of any county court or quarter sessions shall be disqualified from acting in the execution of this Order by reason of his being liable to the payment of any water rate or other charge under this Order.

40. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

EAST KENT DISTRICT WATER.

East Kent
District.

Order empowering the East Kent District Water Company to extend their limits of supply to raise additional capital and for other purposes.

Short and
collective
titles.

1. This Order may be cited as the East Kent District Water Order 1910 and the East Kent District Water Act 1889 (in this Order referred to as "the Act of 1889") and this Order may be cited collectively as the East Kent District Water Act and Order 1889 and 1910.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation
of Acts.

3. So far as the same relate to the powers conferred by this Order the provisions of the Companies Clauses Consolidation Acts 1845 to 1889 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 the Companies Clauses Act 1869 and the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order :

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East Kent
District.

Provided that section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted therefrom.

For the purpose of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "Company" shall mean the Undertakers.

4. The several words terms and expressions to which by any Act incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpreta-
tion.

5. The East Kent District Water Company incorporated by the Act of 1889 shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

6. The Undertakers shall have and may exercise subject to the provisions of this Order within the following new limits namely the parishes of Wootton Swingfield Acrise Poulton and Hougham Without all in the county of Kent (herein-after referred to as "the new limits") for or in relation to the supply of water all the like powers privileges and authorities and be subject to all the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of the Act of 1889 and from and after the commencement of this Order the limits of the Act of 1889 shall be deemed to include the new limits.

Extension of
limits of sup-
ply.

7. The Undertakers shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them unless the works and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament or Provisional Order.

Limiting
powers of
Undertakers
to abstract
water.

8. If at any time after the expiration of three years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order in any part of the district of any local authority within the new limits the local authority of such part of the said district may provide a supply in the whole or any part of their district within the new limits in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for

Where
Undertakers
not furnish-
ing sufficient
supply local
authority or
company may
supply.

A.D. 1910.
—
*East Kent
District.*

the purpose of supplying water in any part of such district not sufficiently supplied by the Undertakers as if in either case there were no company authorised by this Order to supply water therein. If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

For protec-
tion of Dover
Corporation.

9. For the protection of the mayor aldermen and burgesses of the borough of Dover (herein-after called "the corporation") the following provisions shall apply and have effect (that is to say):—

(1) If at any time hereafter the parishes of Poulton and Hougham Without or either of them or any part of such parishes respectively in which the Undertakers may under this Order have power to supply water shall be included within the borough of Dover and the corporation shall give to the Undertakers six months' notice of the corporation's desire to purchase the portion of the undertaking of the Undertakers in any such parish or part thereof and shall obtain the consent of the Local Government Board or Parliament to such purchase and shall also obtain power to supply water within such parish or part thereof the Undertakers shall not oppose the application to the Local Government Board or to Parliament except as to the details thereof and shall sell to the corporation the portion of their undertaking within such parish or part thereof (except the mains and pipes or other apparatus which shall be necessary for supplying with water any other part of the limits of the Undertakers for the supply of water) at a price equal to twenty-seven and one half years' purchase of the net profits earned by the Undertakers in such parish or part thereof during the year immediately preceding the service of the notice by the corporation. And the corporation shall also pay to the Undertakers such fair and sufficient compensation for extra main laying or other works or obligations necessary in case of severance to enable the Undertakers to carry out their obligations to supply water in the rest of their district or area as may be agreed or as failing agreement may be determined by arbitration under the provisions of the Lands Clauses Acts:

(2) After the completion of any such purchase all rights and obligations of the Undertakers within any such parish or part thereof shall cease and determine except that the Undertakers shall retain their right to lay and repair any necessary mains pipes and apparatus within such parish or part thereof for the purpose of supplying any other part of the limits of supply of the Undertakers.

10. The provisions of section 29 of the Act of 1889 shall be deemed to apply to any works constructed by the Undertakers under the authority of this Order and the exercise of the powers of this Order as if the said provisions were re-enacted in this Order.

East Kent
District.
For protec-
tion of Kent
County
Council.

11. The provisions of section 28 of the Act of 1889 shall be deemed to apply to any works constructed by the Undertakers under the authority of this Order and the exercise of the powers of this Order as if the said provisions were re-enacted in this Order.

For protec-
tion of South
Eastern Rail-
way Com-
pany.

12.—(1) The Undertakers may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Undertakers in providing such materials and executing such work shall be paid by the person requiring the same.

Power to
supply fit-
tings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

(3) Section 46 (Power for company to supply materials &c.) of the Act of 1889 is hereby repealed.

13. In addition to the capital already authorised to be raised by the Undertakers under the Act of 1889 (in this Order referred to as "the original capital") they may—

Additional
capital.

- (1) Raise any further sums not exceeding in the whole twenty thousand pounds by the issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of these modes respectively (in this Order referred to as "the new capital") but the Undertakers shall not issue any share under the authority of this Order of less nominal value than ten pounds nor shall any such share or stock issued under the authority of this Order vest in the person accepting the same unless and until the full nominal amount of such share or stock together with any premium obtained on the sale thereof as herein-after provided has been paid in respect thereof. Provided that

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*East Kent
District.*

it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of twenty thousand pounds:

- (2) Borrow on mortgage in respect of the new capital any sum or sums not exceeding in the whole one-fourth part of the amount of the new capital at the time actually issued by shares or stock including the premiums (if any) realised on the sale thereof but no part thereof shall be borrowed until the whole of the shares or stock in respect of which the power of borrowing is being exercised including the premiums (if any) realised on the sale thereof shall have been fully paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock including the premiums (if any) realised on the sale thereof have been fully paid up and upon production to such justice of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

As to conversion of borrowed money into capital.

14. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or by the issue of debenture stock or any part thereof by the creation of shares or stock instead of borrowing or to convert into capital the amount borrowed under the provisions of this Order.

Except as otherwise provided new shares or stock to be subject to same incidents as other shares or stock.

15. Except as by this Order otherwise provided the new capital created by the Undertakers under this Order and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the new capital were part of the existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital.

New capital to be sold by auction or tender.

16.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall determine Provided as follows:—

- (A) Notice of the intended sale shall be given in writing to the clerk of every local authority within the limits of supply

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District.

and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply :

- (B) A reserve price shall be fixed and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened until after the day of auction or last day for the receipt of tenders as the case may be :
- (C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportions as the Undertakers may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

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*East Kent
District.*Application
of money.

17. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

Power to
create debenture
stock.

18. The Undertakers may create and issue debenture stock subject to the provisions of the Companies Clauses Act 1863 and of section 14 of the Act of 1889.

Existing
mortgages to
have priority.

19. All mortgages granted by the Undertakers under the authority of the Act of 1889 before the commencement of this Order and subsisting at the date of such commencement shall during the continuance of such mortgages and subject to the provisions of that Act have priority over any mortgages granted under the authority of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Appointment
of receiver.

20. Section 13 (For appointment of a receiver) of the Act of 1889 is hereby repealed as from the commencement of this Order but without prejudice to any appointment which may have been made or to the continuance of any proceeding pending under any such provisions. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

Limits of
dividend on
new capital.

21. The Undertakers shall not in any one year make out of their profits any larger dividend on the new capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as may be raised as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on the ordinary share capital which shall have fallen short of the said sum of seven pounds per centum per annum.

Preference
shares or
stock may be
created sub-
ject to re-
demption.

22. Any preference shares or stock created and issued under the powers of this Order may be issued subject to the conditions that the same may be redeemed by the Undertakers at such times and on such terms and conditions as shall be expressed on the certificates of such shares or stock.

A.D. 1910.

23. The Undertakers may apply to any of the purposes of the Act of 1889 or this Order to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the Act of 1889 or this Order or which may be under their control and which are not required for the purposes to which they are by the said Act or Order made specially applicable.

*East Kent
District.*
Power to
apply funds.

24. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

SOUTH KENT WATER.

*Order empowering the South Kent Water Company to raise
additional capital and for other purposes.*

South Kent.

1. This Order may be cited as the South Kent Water Order 1910 and the South Kent Water Act 1889 (in this Order referred to as "the Act of 1889") and this Order may be referred to collectively as the South Kent Water Act and Order 1889 and 1910.

Short and
collective
titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
ment of
Order.

3. So far as the same relate to the powers conferred by this Order the provisions of the Companies Clauses Consolidation Acts 1845 to 1889 with respect to the following matters (that is to say):—

Incorpora-
tion of Acts.

The distribution of the capital of the company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the company against the shareholders;

The borrowing of money by the company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

A.D. 1910. and Part I. (relating to cancellation and surrender of shares) Part II.
South Kent. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 the Companies Clauses Act 1869 and the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order.

For the purpose of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "company" shall mean the Undertakers.

Interpreta-
tion.

4. The several words terms and expressions to which by any Act incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction.

Undertakers.

5. The South Kent Water Company incorporated by the Act of 1889 shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Additional
capital.

6. In addition to the capital already authorised to be raised by the Undertakers under the Act of 1889 (in this Order referred to as "the original capital") they may—

(1) Raise any further sums not exceeding in the whole twenty thousand pounds by the issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of these modes respectively (in this Order referred to as "the new capital") but the Undertakers shall not issue any share under the authority of this Order of less nominal value than ten pounds nor shall any such share or stock issued under the authority of this Order vest in the person accepting the same unless and until the full nominal amount of such share or stock together with any premium obtained on the sale thereof as herein-after provided has been paid in respect thereof Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of twenty thousand pounds:

(2) Borrow on mortgage in respect of the new capital any sum or sums not exceeding in the whole one-fourth part of the amount of the new capital at the time actually issued by shares or stock including the premiums (if any) realised on the sale thereof but no part thereof shall be borrowed until the whole of the shares or stock in respect of which the power of borrowing is being exercised including the premiums

(if any) realised on the sale thereof shall have been fully paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock including the premiums (if any) realised on the sale thereof have been fully paid up and upon production to such justice of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

A.D. 1910.
South Kent.

7. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or by the issue of debenture stock or any part thereof by the creation of shares or stock instead of borrowing or to convert into capital the amount borrowed under the provisions of this Order.

As to conversion of borrowed money into capital.

8. Except as by this Order otherwise provided the new capital created by the Undertakers under this Order and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the new capital were part of the existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital.

Except as otherwise provided new shares or stock to be subject to same incidents as other shares or stock.

9.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

New capital to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of every local authority within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened until after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

A.D. 1910.
South Kent.

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportions as the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

(6) Notwithstanding anything contained in the Act of 1889 the provisions of this section shall apply to the issue of any capital authorised to be issued under the Act of 1889 but remaining unissued at the commencement of this Order and such capital may be issued accordingly.

Application
of premium
arising on
issue of
shares or
stock.

10. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

A.D. 1910.

11. The Undertakers may create and issue debenture stock subject to the provisions of the Companies Clauses Act 1863 and of section 14 of the Act of 1889.

South Kent.
Power to
create debenture stock.

12. All mortgages granted by the Undertakers under the authority of the Act of 1889 before the commencement of this Order and subsisting at the date of such commencement shall during the continuance of such mortgages and subject to the provisions of that Act have priority over any mortgages granted under the authority of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Existing mortgages to have priority.

13. Section 13 (For appointment of a receiver) of the Act of 1889 is hereby repealed as from the commencement of this Order but without prejudice to any appointment which may have been made or to the continuance of any proceedings pending under any such provisions. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

Appointment of receiver.

14. The Undertakers shall not in any one year make out of their profits any larger dividend on the new capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on the ordinary share capital which shall have fallen short of the said sum of seven pounds per centum per annum.

Limits of dividend on new capital.

15. Any preference shares or stock created and issued under the powers of this Order may be issued subject to the conditions that the same may be redeemed by the Undertakers at such times and on such terms and conditions as shall be expressed on the certificates of such shares or stock.

Preference shares or stock may be created subject to redemption.

16. The Undertakers may apply to any of the purposes of the Act of 1889 or this Order to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the Act of 1889 or this Order or which may be under their control and which are not required for the purposes to which they are by the said Act or Order made specially applicable.

Power to apply funds.

17.—(1) The Undertakers may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks

Power to supply fittings.

A.D. 1910. cisterns baths meters soil pans water-closets and other fittings as
South Kent. are required or permitted by their regulations and may provide
all materials and work necessary or proper in that behalf and the
reasonable charges of the Undertakers in providing such materials
and executing such work shall be paid by the person requiring the
same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

(3) Section 46 (Power for company to supply materials &c.) of the Act of 1889 is hereby repealed.

Agreements
with Mid
Kent Water
Company as
to supply of
water in bulk.

18. The Undertakers may enter into and carry into effect agreements with the Mid Kent Water Company for the supply to the Undertakers by the Mid Kent Water Company of water in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon.

Costs of
Order.

19. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

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